

Kanhaiya Lal Urf Kalua v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 July 2023 · 2023:AHC:148431-DB · Writ-C No. 23130 of 2023 · **Disposed on consent to consider a clause 4.4 application**

HEADNOTE

A fresh-connection refusal, founded only on a pending Section 92 CPC leave application concerning temple premises, was not decided on merits. On consent the writ was disposed with a direction that the petitioner apply within ten days in Annexure 4.2 of clause 4.4 of the U.P. Electricity Supply Code, 2005, and that the licensee consider that application in accordance with law after hearing persons having a stake.

FACTUAL SUMMARY

The petitioner, claiming to manage the temple of Thakur Hanuman Ji Maharaj at Khomacha Wali Bagichi, Hathras, applied on 8 February 2023 for a fresh electricity connection. Dakshinanchal Vidyut Vitran Nigam rejected it on 24 March 2023 because a Section 92(1) CPC application for leave to sue over the premises was pending before the District Judge, Hathras. A decree of 30 January 2003 in Suit No. 477 of 1998 had treated the premises as property of public and religious interest.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

Fresh connection on Annexure 4.2 indemnity while a civil proceeding is pending

HOLDING

On consent, the person claiming to manage the temple is to move, within ten days, an application in Annexure 4.2 of clause 4.4 for a new connection, and the licensee is to consider it expeditiously in accordance with law after hearing persons having a stake in the premises. The Court does not direct that the connection be granted. ¶ 5-6

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The Division Bench disposed of the writ on consent by directing the applicant to furnish an Annexure 4.2 application under clause 4.4 and the licensee to consider it in accordance with law, without granting the connection. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO A NEW ELECTRICITY CONNECTION

Left to the licensee on the fresh Annexure 4.2 application, to be decided in accordance with law after hearing persons having a stake. ¶ 6

NOT DECIDED — THE PENDING SECTION 92 CPC LEAVE APPLICATION AND THE EFFECT OF THE 2003 DECREE ON TITLE OR MANAGEMENT OF THE TEMPLE PREMISES

¶ 2-3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Seema Mansoor vs. U.P. Power Corporation Ltd. and others Writ C No. 28295 of			4	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
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2014, order dated
26.05.2014

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